

IN THE PROCURMENT REVIEW COMMITTEE

BALUCHISTAN PUBLIC PROCURMENT REGULATORY AUTHORITY

PRC Appeal No. 01/2025

Quorum:

1. Muhammad Afzal Chairman
2. Mubashir Ali Khan (FCIPS) Member
3. Engr. Muhammad Ayub Nasir..... Member Technical
4. Engr. Junaid Shah..... Member
5. Abdul Wahab Buledi Advocate..... Private Member

M/S Ahmed Din & Sons

....APPELLANT

VERSUS

1. The Chief Secretary Government of Baluchistan.
2. The Secretary, CW PP&H Department , Quetta.
3. The Project Director, Blacktop Road from Main Sibi Road to Thadri, Kohlu.
4. The Executive Engineer (Road), CW PP&H Department, District kohlu.

....RESPONDENTS

APPEAL UNDER RULE 56-A OF BALUCHISTAN PUBLIC PROCUREMENT RULES 2014

For the appellant:

Mr. Raffiullah Advocate

For the Respondents:

1. Asmatullah Sabir, Superintending Engineer / Representative of CRC
2. Mr. Niaz Ahmed, XEN Kohlu

Decision: -

That the brief facts leading to the instant case are that the appellant has filed an appeal where under the appellant has reported that the respondent No. 4 had issued tender notice under TSE No. 242503666343 where under the bids were invited for the "construction of Black top road from main Kohlu road to Killi Haji Mir Bahar Khan Marri" the appellant has further stated that he has participated in the bidding process and finally qualified for the contract and the respondent No. 4 has issued the work order No.EE(CW,PP&H)/K/131-134/CB dated 22-05-25 and the appellant after issuance of work order dated 22/5/25 the appellant has deployed the machinery over the site and the laborers were hired to carry on the construction work, he further stated that some of earthwork has already been completed.

The notices were issued to the respondents and the matter came up for hearing before this committee on 12/06/25 where the Respondent No. 3 and the Respondent No. 4 appeared before this committee. However, the matter could not have been decided as the complaint so filed by the appellant was pending before the CRC hence direction was given to the CRC to decide

the complaint in accordance with the relevant rules and meanwhile the other respondents were directed to file their comments by or before 16/06/25.

The case was called on 16/6/25 but neither the respondents No. 3 and No. 4 appeared before this committee nor submitted their reply. However, the appeal was accompanied with an application under Rule 56(A)(6) of the BPP Rules 2014. The learned counsel has extended his arguments on the appellant side that if the impugned Tender Notice is not suspended the very purpose of filing of the instant appeal shall be frustrated as the opening of the bid under new tender notice is already scheduled for opening on the 19/06/25. Whereas, in absence of the respondent side the matter could not be decided except to pass an appropriate order regarding suspension of impugned tender notice bearing no. AB 1214/04-06-25 (TSE No. 242506743673). The contention so raised by the learned counsel for the appellant is justified and this committee feels appropriate to suspend the operation of impugned Tender Notice bearing no. AB 1214/04-06-25 (TSE No. 242506743673) meanwhile the respondent were once again directed to file their reply if desired and the matter was adjourned for 18/6/25.

That matter came up again for final hearing on 18/6/2025, during the proceedings the contention of Mr. Asmatullah Sabir representative of CRC was taken he was of the view that they have decided the fate of the complaint so filed by the appellant in accordance with law on the point of maintainability through their decision dated 16/06/25. However, the query was also raised to the XEN regarding issuance of work order which was not denied by him. whereas, the Project Director once again remained absent without any intimation and filing of reply.

The concerned XEN Mr. Niaz Muhammad who earlier issued tender under TSE No. 242503666343 is present who confirmed that the contract was awarded to the appellant after observing all codal formalities and the said work order id still in field.

The representative of the CRC also conceded the statement of Respondent No. 4 and further stated that the appellant has been failed to execute an agreement within 7 days as required under the relevant clause of work order dated 22/05/25. Whereas, the plea so raised by the representative of CRC is not considerable as no correspondence , perusal or show cause notice nor any intimation was communicated to the contractor under Rule 54(2) of the BPP Rules regarding execution of the contract. The respondent no. 4 also endorsed that that no such show cause notice etc. has been issued nor the issued Work Order has been terminated.

We have heard the learned Counsel Mr. Rafiullah Agha Advocate for the appellant as well have perused the record of the appeal.

Before concluding it would be appropriate to discuss Rule 56 of BPPRA Rules 2014 under which the CRC was competent to decide the said complaint. Whereas. the decision dated 16/06/25 submitted by the Chairman CRC vide his letter No. 1-R/CE-SZ(R)/3350/C dated 16/06/25 to this committee, wherein, the CRC without considering the merits and demerits of the case has rejected the compliant on the ground of maintainability. However, the relevant provision of Rule 56(3) of BPPRA is reproduced as under:

56. Mechanism for Redressal of Grievances. —

(3) The complaint redressal committee upon receiving a complaint from an aggrieved bidder may, if satisfied—

(a) reject the complaint considering it to have been made on frivolous grounds;

(b) prohibit the Procurement Committee from acting or deciding in a manner, inconsistent with these rules and regulations;

(c) annul in whole or in part, any unauthorized act or decision of the Procurement Committee;

(d) recommend to the Head of Department that the case may be declared a misprocurement if material violation of the Act, rules, regulations, orders, instructions or any other law relating to public procurement, has been established; and

(e) reverse any decision of the Procurement Committee or substitute its own decision for such a decision: Provided that the complaint redressal committee shall not make any decision to award the contract.

The CRC under Rule 56 Sub Rule 3(b) and (c) read with Rule 38(1) of ibid rules was quite competent to decide the same on merits instead of on the ground of recusal.

BPP Rule 38(1) is reproduced as under:

38. Cancellation of Bidding Process —

(1) A Procuring Agency may cancel the bidding process at any time prior to the acceptance of a bid or proposal.

The procuring agency could have cancelled the bidding process prior to acceptance of bid but in the instant case the procuring agency has accepted the bid and has subsequently awarded the contract to the appellant through the afore-mentioned work order. Since issuance of work order creates the financial liability over the public exchequer and accrual of right of the recipient contractor / lowest evaluated bidder, as such it cannot be withdrawn. Hence, issuance of tender notice for the work already awarded is not justified and is a sheer violation of the procurement rules. Hence, the advertisement bearing No. AB No. 1214/04-6-25 under TSE No.242506743673 is ultra-vires of the public procurement legal framework. Hence, it is set aside.

Chairman
Government of Balochistan
Public Procurement Review Committee
(B-PBRA)
18/6/25
Chairman

Member
Procurement Review Committee
BPPRA
18/06/25
Member/ Procurement Specialist
Goods & Services

Member
Procurement Review Committee
BPPRA
18/06/25
Member/ Procurement Specialist
Works

Member
Procurement Review Committee
BPPRA
18/06/2025
Technical Member

Member
Procurement Review Committee
BPPRA
Private Member